

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

7. KELSEY MCPARLAND V. PATRICK MCPARLAND

24FL0881

On March 24, 2026, the parties appeared before the court for a long cause trial on the issues of property division, attorney's fees, spousal support, pet custody, and pet care orders per Family Code § 2605. At that time the parties conceded that they were not ready to proceed and the trial was continued to August 31st. The matter was set for a review hearing on the present date.

Also on March 24th, Petitioner filed a Request for Order (RFO) seeking spousal support retroactive back to the date of originally filing for support in November of 2025, and attorney's fees. She attached her March 16th Income and Expense Declaration to the moving papers.

On March 26th, Petitioner filed another RFO for reconsideration of prior court orders and division of community property.

There are two Proofs of Service showing service of an FL-300 but neither specifies which FL-300 was actually served.

Respondent filed and served two Responsive Declarations to Request for Order on June 11th, one addressing the March 24th RFO and the other addressing the March 26th RFO. The court finds this effectively waives any potential defect in service of the RFOs.

Petitioner filed an Amended Brief Re Request for Spousal Support and an Income and Expense Declaration on June 15th. She also filed a Notice of Withdrawal of Motion the same day withdrawing her Motion for Reconsideration.

Given that Petitioner has withdrawn her Motion for Reconsideration the court will not be addressing the March 26th RFO herein.

Turning to the March 24th RFO, Petitioner is requesting guideline spousal support back to the date of her original request which was filed in November of 2025. She further requests attorney's fees in the amount of \$75,288.

Respondent opposes Petitioner's requests. He argues that the issue of spousal support is already pending trial and Petitioner has not sought bifurcation of that issue. He further asks the court to deny Petitioner's request for attorney fees.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #7: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.